> *the right to possess, use and dispose of it.* . . . The constitutional provision is addressed to *every sort of interest* the citizen may possess." *Id.*, at 377–378 (emphasis added).

While neighboring landowners are free to use their land and "air rights" in any way consistent with the broad boundaries of New York zoning, Penn Central, absent the permission of appellees, must forever maintain its property in its present state.[5] The property has been thus subjected to a nonconsensual servitude not borne by any neighboring or similar properties.[6]

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Appellees have thus destroyed—in a literal sense, "taken"—substantial property rights of Penn Central. While the term "taken" might have been narrowly interpreted to include only physical seizures of property rights, "the construction of the phrase has not been so narrow. The courts have held that the deprivation of the former owner rather than the accretion of a right or interest to the sovereign constitutes the taking." *Id.*, at 378. See also *United States* v. *Lynah,* 188 U. S. 445, 469

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[5] In particular, Penn Central cannot increase the height of the Terminal. This Court has previously held that the "air rights" over an area of land are "property" for purposes of the Fifth Amendment. See *United States* v. *Causby,* 328 U. S. 256 (1946) ("air rights" taken by low-flying airplanes); *Griggs* v. *Allegheny County,* 369 U. S. 84 (1962) (same); *Portsmouth Harbor Land & Hotel Co.* v. *United States,* 260 U. S. 327 (1922) (firing of projectiles over summer resort can constitute taking). See also *Butler* v. *Frontier Telephone Co.,* 186 N. Y. 486, 79 N. E. 716 (1906) (stringing of telephone wire across property constitutes a taking).

[6] It is, of course, irrelevant that appellees interfered with or destroyed property rights that Penn Central had not yet physically used. The Fifth Amendment must be applied with "reference to the uses for which the property is suitable, having regard to the existing business or wants of the community, *or such as may be reasonably expected in the immediate future.*" *Boom Co.* v. *Patterson,* 98 U. S. 403, 408 (1879) (emphasis added).